

Tamil Nadu Legislators Hostel (Accommodation) Rules, 1969

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State of Tamilnadu- Act

Tamil Nadu Legislators Hostel (Accommodation) Rules, 1969

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Tamil Nadu Legislators Hostel (Accommodation) Rules, 1969

Rule TAMIL-NADU-LEGISLATORS-HOSTEL-ACCOMMODATION-RULES-1969 of 1969

Published on 20 February 1969

Commenced on 20 February 1969

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Tamil Nadu Legislators Hostel (Accommodation) Rules, 1969

Published vide Notification No. G.O. Ms.No. 345, Public (Election-4), dated 20.2.1969

In exercise of the powers conferred by sub-section (3) of section 12 and sub-section (1) of section 14 of the Tamil Nadu Payment of Salaries Act, 1951 (Tamil Nadu Act XX of 1951), the Governor of Tamil Nadu hereby makes the following rules: -

1.

Short title and commencement.

(1)

These rules may be called the Tamil Nadu Legislators Hostel (Accommodation) Rules, 1969.

(2)

These rules shall be deemed to have come into force on the 14th August 1968.

2.

Definitions.

- In these rule, unless there is anything repugnant in the subject or context, -

(1)

"Assembly" means the Tamil Nadu Legislative Assembly;

(2)

["Committee" means a Committee appointed or elected by the Assembly or nominated by the Speaker under the rules of the Assembly and includes a Select Committee, but does not include any Committee appointed by the State Government;]

[Vide G. O. Ms. No. 483, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

(3)

[Omitted.]

(4)

"Day" means a period of twenty-four hours beginning at the hour of occupation of accommodation;

(5)

[Omitted.]

[Omitted by G.O. Ms.No. 564, Public (Establishment-I and Legislature), dated the 14th July 1994.]

(6)

"Hostel" means the Tamil Nadu Legislators Hostel;

(7)

"House Committee" means the House Committee of the Legislative Assembly;

(8)

"Meeting" means a meeting of the Assembly or of the Governor's Address or a meeting of a Committee or two or more Committees combined but does not include "tours" as defined in clause (11);

(9)

"Member" means a Member of the Assembly;

(10)

["Secretary" means the Secretary, Legislative Assembly Secretariat; and]

[Vide G.O. Ms. No. 483, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

(11)

(a)

"Tour" means a tour undertaken by Committee in connection with its functions within the State; and

(b)

a tour arranged by the State Government for groups of members to various places within the State to study the developmental activities.

3.

Charge for accommodation.

(1)

Every Member shall be entitled to Hostel accommodation free of charge on every day of meeting, on every day of adjournment and on every such other day for which he is eligible under the Tamil Nadu [Legislative Assembly]

[Vide G.O. Ms. No. 483, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

Travelling Allowance Rules, 1955, for daily allowance in respect of a meeting.

(2)

The charge for accommodation on days other than those mentioned in sub-rule (1) shall be two rupees and fifty paise per Member per day or part thereof.

(3)

The charge for a continuous stay of not less than thirty days shall be sixty rupees per Member for every period of thirty days of such continuous stay and pro rata for fractions of a month.

(4)

[Rental charges for Ex. Members of Legislative Assembly, Ex. Members of Legislative Council, Members of Parliament, Ex. Members of Parliament and officials shall be collected as in the Table below: -

[Table]

Single Room (per day) Rs.

Double Room (per day) Rs.

For Ex.-Members of Legislative Assembly,

Ex.Members of Legislative Council, Members of Parliament and

Ex-Members of Parliament for the first five days.

30.00

60.00

Beyond five days.

60.00

100.00

For Officials coining to Chennai on duty for the

first five days.

30.00

60.00

Beyond five days

60.00

100.00]

[Vide G.O. Ms. No. 1133, Public (Establishment-I and Legislature), dated the 9th October 2001]

4.

[Charge for Member's family and guests.

[Vide G.O. Ms. No. 221, Public (Elections-IV), dated the 6th February 1970.]

(1)

(a)

A Member's family, if and when accompanied by the Member, shall be allowed to pay the concessional rent of two rupees and fifty paise per day per head for the stay in the Legislators Hostel.

(b)

The charges for accommodation specified in clause (a) shall be payable even on the days when the Member is entitled to rent-free accommodation under sub-rule (1) of rule 3.

(c)

The charge for a continuous stay of not less than thirty days shall be sixty rupees per head for every period of thirty days of such continuous stay and pro rata for fractions of a month.]

Explanation. - For the purpose of this sub-rule, "Member's Family" includes father, mother, spouse and children of tie Member.

(2)

[Guests of Members accommodated in their room between 8.00 p.m. and 8.00 a.m. shall be charged at Rs. 2.50 per head per day:]

[Vide G.O. Ms. No. 307, Public (Establishment), dated the 7th March 1973.]

Provided that the number of such guests shall not exceed two at a time:

Provided further that no guests shall be allowed to stay in the rooms when Legislature is not in session.

(3)

[Rental charges [for separate room accommodation for guests of Members]

[Vide G.O. Ms. No. 1133, Public (Establishment-I and Legislature), dated the 9th October 2001.]

shall be collected as in the Table below:

Table

Single Room (per day) Rs.

Double Room (per day) Rs.

For the first five days

60.00

100.00

Beyond five days

100.00

150.00]

5.

Mode of payment of charges.

(1)

Any charge due by a Member under any of these rules shall be paid -

(a)

in the case of continuous stay of not less than thirty days, at the end of the period of every thirty days, and

(b)

in any other case, at the time the Member vacates the room.

(2)

Any such charge as is referred to in sub-rule (1) in arrears by any Member shall be recovered from the travelling allowance bill and/or the salary bill of the Member concerned.

(3)

No Member shall be provided with accommodation when [Legislative Assembly]

[Vide G.O. Ms. No. 483, Public (Establishment-I and Legislature), dated the 22nd April 1992.]

is not in session if the arrears of hostel rent at any time is Rs. 250 (Rupees two hundred and fifty only) or more.

6.

Servants of Members.

- Servants of Members shall not be allowed to stay in the room. Such servants may be allowed to stay in the verandahs subject to the condition that only one servant for every Member is allowed.

7.

Prohibition of public meeting.

- No Member shall hold any public meeting in the room occupied by him in the Hostel or use it as an office.

8.

Prohibition of cooking.

- No cooking shall be permitted in the hostel.

9.

Responsibility for loss of articles, etc.

- A Member shall, during his stay be responsible for the loss of articles of furniture, fixtures, and other articles provided in the room occupied by him in the hostel.

10.

[Use of telephones.

[Vide G.O. Ms. No. 1823, Public (Establishment), dated the 10th November 1983 (with effect from 10th November 1983).]

- A Member shall be entitled to the use of telephone in the hostel, subject to the condition as may be prescribed in this regard, from time to time.]

11.

Use of the hostel for other purposes.

- When there is no meeting the hostel may, subject to availability of accommodation, be used also for such other purposes as may be determined by the House Committee.

12.

Finality of orders.

- In matters not specifically provided for in these rules, the decision of the Secretary and, subject to his decision, the decision of the [Under Secretary (Hostel), Legislative Assembly]

[Vide G.O. Ms. No. 564, Public (Establishment-I and Legislature), dated the 14th July 1994 (with effect from 1st October 1984).]

Secretariat shall be final.

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